

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2707

By: Ford

AS INTRODUCED

An Act relating to marriage; authorizing courts to order additional periods of possession or access to a child under certain circumstances; directing courts to order additional periods of possession or access; establishing requirements for additional periods of possession or access; making persons denied possession or access entitled to determine times of additional possession or access; proscribing causes of action against the Department of Human Services; providing for sovereign immunity; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 107.5 of Title 43, unless there is created a duplication in numbering, reads as follows:

A. Except as provided in paragraph 1 of this subsection, a court may order additional periods of possession of or access to a child to compensate for the denial of court-ordered possession or access.

1. Unless a party shows good cause why the order should not be rendered, a court shall order additional periods of possession of or

1 access to a child to compensate for a denial of court-ordered
2 possession or access that resulted from an investigation by the
3 Department of Human Services that did not result in a finding of
4 abuse or neglect.

5 2. The additional periods of possession or access:

6 a. shall be of the same type and duration of the
7 possession or access that was denied,

8 b. may include weekend, holiday, and summer possession or
9 access, and

10 c. shall occur on or before the second anniversary of the
11 date the court finds that court-ordered possession or
12 access has been denied.

13 B. The person denied possession or access is entitled to decide
14 the time of the additional possession or access, subject to the
15 provisions of paragraph 2 of subsection A of this section.

16 C. Paragraph 1 of subsection A of this section shall not:

17 1. Create a cause of action against the Department of Human
18 Services; or

19 2. Waive sovereign immunity to suit or liability.

20 SECTION 2. This act shall become effective November 1, 2025.

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